

(12)

No. 8/10/72-Ests(C)
Government of India/Bharat Sarkar
Cabinet Secretariat/Mantri Mandal Sachivalaya
Department of Personnel/Karmik Vibhag.

New Delhi, dated 9th November, 1972.
18 Kartika, 1894.

OFFICE MEMORANDUM

Subject:- Forwarding of applications of Government servants working in a Department/Office of the Central Government to posts in other Central Government Departments/Offices-
Question regarding the retention of lien in the parent Department.

The undersigned is directed to refer to para 1(6) of the Ministry of Home Affairs O.M. No. 60/37/63-Ests(A) dated 14th July, 1967 on the subject mentioned above, which provides that during the period of retention of lien for two or three years in the parent Department the pay of the Officer in the ex-cadre post will be fixed in the pay scale of that post and will be subject to the limits prescribed in Ministry of Finance O.M. No. F10(24)-E.III/60 dated 9th March, 1964 in cases where the minimum of the scale of pay of the new post is substantially in excess of the grade pay drawn by the person concerned in the parent Department. The effect of the afore-said O.M. is that the pay of the officer in the new post has in most of the cases to be fixed at a figure below the minimum of the pay scale of the new post under F.R. 35 subject to the limits laid down in the Ministry of Finance O.M. dated 9.3.1964 referred to above. A question has been raised whether the restriction on pay imposed in terms of para 1(6) of the Ministry of Home Affairs O.M. dated 14th July, 1967 should apply in a case where a permanent Central Government servant is appointed to an ex-cadre post on the basis of his selection in an open competition on the recommendations of the U.P.S.C.

2. After a careful consideration of the case and having regard to the fact that restriction of pay of a Government servant vis-a-vis an outsider who is allowed to draw pay in the scale of pay of the post, gives rise to an anomalous position in that the persons selected in an open competition are treated differently, it has been decided that in cases where Government servants are selected for appointment to ex-cadre posts on the basis of their own application in an open competition through the U.P.S.C. they will be allowed to draw pay in the scale of the post without applying the restrictions laid down in the Ministry of Finance O.M. dated 9.3.1964.

3. These orders will take effect from the date of their issue and cases already decided otherwise will not be reopened but if such an employee is, on the date of these orders drawing pay less than the minimum of the scale, he may be allowed to draw the minimum.

4. In so far as persons serving in the I.A. & A.D. are concerned, these orders issue in consultation with the C. & A.S..

AUTHORISED FOR ISSUE.

H.S. Dhillon
(H.S. DHILLON)
SECTION OFFICER

Sd/-

(O.P. YADAVA)
UNDER SECRETARY TO THE GOVERNMENT OF INDIA

To

All Ministries etc. etc.
(with usual No. of copies).

All Union Territory Govts/Administrations.
All Attached & Subordinate Offices of the
Ministry of Home Affairs/Deptt. of Personnel.
All Administrative/Service Sections of the
Ministry of Home Affairs/Deptt. of Personnel.
Ministry of Finance E.III(B) Branch with reference
to their U.O. No. E566 E.III(B)/72 dt. 5.10.1972.
Office of the  & Auditor General
with reference to his U.O. No. 980-
Audit/55-72 dt. 14.9.1972.

/Comptroller

G. Bist/-